

Court No. - 21

Case :- WRIT - C No. - 11851 of 2014

Petitioner :- Dharmendra Kumar Kesarwani

Respondent :- Purwanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Dinesh Mishra

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Vivek Kumar Birla,J.

We have heard learned counsel for the petitioner and Sri R.S. Umrao, holding brief of Mahboob Ahmad appearing for the respondents-Power Corporation.

On a perusal of the record, we find that the petitioner was given electricity connection in the year 2009. A provisional bill was raised against him which was paid by him. An FIR was also lodged against him. However, it is not in dispute that the petitioner had paid the amount as raised by means of the provisional bill.

The prayer is for reconnection of the connection already granted to the petitioner in the year 2009, as pointed out by the learned counsel for the Power Corporation.

The grievance of the petitioner can be redressed under Clause 4.39 of the Electricity Supply Code, 2005. Learned counsel for the Power Corporation states that the petitioner may approach the competent authority who shall decide the petitioner's application for reconnection.

Accordingly, we hereby direct the respondent no.2-Executive Engineer who shall consider the application for reconnection as mentioned above within a period of two weeks' from the date of production of a certified copy of this order before him.

With the said observations, this writ petition is disposed of.

Order Date :- 25.2.2014

Anand Sri./-